

C1 AGR- 11564 **LICENSE AGREEMENT**

This License Agreement ("Agreement") is entered into as of the date of the last signature below ("Effective Date") by and between Veritone, Inc. (for itself and/or its subsidiaries), having a principal office located at 575 Anton Boulevard, Suite 100, Costa Mesa, CA 92626 ("Veritone") and the entity listed under Licensee Information below ("Licensee"), with respect to license(s) to Veritone's aiWARE Platform and related Services.

LICENSEE INFORMATION			
Agency Name:	Anaheim Police Department	Billing Contact Information	
Agency Address:	425 S. Harbor Boulevard, Anaheim, CA 92805	Contact Name:	
Contact Name:	Julian Harvey, Deputy Chief	Contact Phone:	
Phone:	714-765-1601	Contact Email:	
Email:	jharvey@anaheim.net	Email for Invoices:	
LICENSE AND SERVICES DETAILS			
Term:	May 1, 2019 to April 30, 2020	No. of Users:	25 Users
License Fee:	\$35,000 total for the Term. License Fee reflects an approximately 80% discount off list price of \$240,000 as a pilot customer.		
Services:	- Veritone aiWARE™ Platform Access - Veritone IDentify Application - Cognitive Processing (detailed below) - Standard webinar training and onboarding; phone, email and chat support		
Cognitive Processing:	License includes facial recognition cognitive processing initiated through the IDentify Application.		
TERMS AND CONDITIONS			

- Master License Terms and Conditions.** This Agreement is governed by the Veritone Master License Terms and Conditions at <https://www.veritone.com/terms-conditions> (the "Terms and Conditions"), which are incorporated herein by reference. In the event of any conflict or inconsistency between the provisions of this Agreement and the provisions contained in the Terms and Conditions, the provisions of this Agreement shall govern and control. Capitalized terms used but not defined herein shall have the meanings ascribed to them in the Terms and Conditions.
- IDentify Application and Cognitive Processing.** During the Term, Veritone will provide Licensee with access to the IDentify Application and the cognitive processing specified above for data, content and media uploaded to the Platform by Licensee (the "Licensee Content") through the IDentify Application. Cognitive processing will be via an automated process within the Platform. Licensee acknowledges that the functionality of the IDentify Application is dependent upon the ability to incorporate data from Licensee's booking/known offender database(s). Licensee will be responsible for furnishing such data to Veritone in a format and via a transmission method reasonably required by Veritone in order to integrate the data with the Platform. Licensee represents and warrants that it has the right to furnish to Veritone and to use such data in connection with Licensee's use of the Platform and Services.
- Limitations.** Licensee acknowledges that the IDentify Application is intended to be used by Licensee only as a tool to support review of digital evidence in connection with its investigations, and the IDentify Application and the results generated therefrom should not be considered or relied upon as a substitute for Licensee's customary investigative procedures, protocols and/or requirements. Licensee acknowledges that there are inherent limitations in artificial intelligence technologies, and Veritone makes no representations or warranties as to the accuracy, quality, sufficiency or usefulness of the results generated by the IDentify Application. Licensee is solely responsible for verifying all results generated by the IDentify Application as part of its customary investigative procedures.

4. **Confidentiality and Data Security.** Veritone shall keep all Licensee Content strictly confidential. Veritone shall maintain and use appropriate administrative, physical, and technical safeguards and measures for protection of the security, confidentiality and integrity of all Licensee Content uploaded to or transmitted through the Platform or Services, including protections against unauthorized disclosure or access, or accidental or unlawful destruction, loss or alteration. Licensee Content shall be used and stored by Veritone solely to the extent required to provide the Services and perform its obligations under this Agreement, and Veritone shall not use or store the Licensee Content for any other purpose whatsoever. Veritone shall ensure that all persons having access to the Licensee Content are subject to confidentiality obligations with respect thereto. Veritone shall notify Licensee within 48 hours in the event that Veritone determines that a security breach has resulted in an unauthorized disclosure of or access to Licensee Content. Upon termination of this Agreement or upon the written request of Licensee at any time, Veritone shall ensure the secure deletion and destruction of all Licensee Content.
5. **Additional Services.** Additional Services, such as on-site training, enhanced onboarding and/or support services, will be made available to Licensee for additional fees, which will be quoted by Veritone upon request. In the event that Licensee desires to use other applications available in the Platform as part of the Services in the future, such additional Services may be added to this Agreement by a written amendment signed by both parties.
6. **Payment Terms.** The License Fee set forth above will be invoiced upon execution of this Agreement, and such invoice will be due upon receipt. In addition, subject to credit approval, Veritone will submit invoices to Licensee monthly for any amounts incurred for additional Services performed during the previous month, and such invoices will be due and payable by the first day of the month following the invoice date. All amounts are payable in U.S. dollars.
7. **Insurance.**

- 7.1. **Required Coverages.** Veritone shall maintain the following insurance coverage during the Term and for at least one (1) year from the termination of this Agreement:

Coverage	Limit
Workers' Compensation Insurance	As required by California statutes
Professional Liability Insurance	One Million Dollars (\$1,000,000.00) per Occurrence

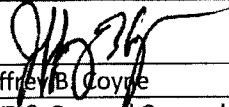
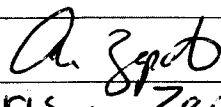
Licensee's Risk Manager is hereby authorized to reduce requirements set forth above in the event such reduction is in Licensee's best interest. Prior to commencing any Services under this Agreement, Veritone shall deliver to Licensee insurance certificates confirming the existence of the insurance required by this Agreement. Licensee reserves the right to demand, and to receive within a reasonable time period, copies of any insurance policies required under this Agreement.

- 7.2. **Remedies.** In addition to any other remedies Licensee may have if Veritone fails to provide or maintain any insurance policies to the extent and within the time herein required, Licensee may, at its sole option:

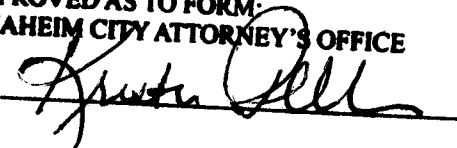
- (a) Order Veritone to cease performing work under this Agreement and/or withhold any payment(s) which become due to Veritone hereunder until Veritone demonstrates compliance with the requirements hereof; or
- (b) Terminate this Agreement.

Exercise of any of the above remedies, however, is an alternative to other remedies Licensee may have and is not the exclusive remedy for Veritone's failure to maintain insurance or secure appropriate endorsements. Nothing contained in this Section 7 shall be construed as limiting in any way the extent to which Veritone may be held responsible for payments of damages to persons or property resulting from Veritone's or its subcontractor's performance of the work covered under this Agreement, except as described in the Indemnification or Limitation of Liability provisions of this Agreement.

8. **Authority.** The person executing this Agreement on behalf of each party represents and warrants that he or she has full authority to execute the same on behalf of such party, and that no other actions or approvals are required for such party to enter into this Agreement and perform its obligations hereunder.

ACCEPTED AND AGREED BY:	
VERITONE, INC.	LICENSEE
Signature: 	Signature: 
Name: Jeffrey B. Coyne	Name: Chris Zapata
Title: EVP & General Counsel	Title: City Manager
Date: June 5, 2019	Date: 6/12/19

APPROVED AS TO FORM:
ANAHEIM CITY ATTORNEY'S OFFICE

BY 

ATTEST:

By: 

Theresa Bass
City Clerk

**Veritone IDentify Application
Data Sharing Addendum**

This Data Sharing Addendum ("Addendum") is entered effective as of the date of the last signature below (the "Addendum Effective Date"), by and between Veritone, Inc. ("Veritone") and Anaheim Police Department ("Licensee"). This Addendum is incorporated by reference into, made a part of and governed by the terms of the License Agreement executed concurrently herewith between Veritone and Licensee (the "Agreement"). In the event of any conflict or inconsistency between the provisions contained in the Agreement and the provisions contained in this Addendum with respect to the subject matter hereof, the provisions of this Addendum shall govern and control. Capitalized terms used but not defined herein shall have the meanings ascribed to them in the Agreement.

1. **IDentify Application.** Veritone has granted to Licensee a right and license to access and use the IDentify Application within the Platform. The IDentify Application allows users to upload booking, arrest and known offender databases (collectively, "Booking Databases") and use facial recognition technology to compare digital evidence from crime scenes with the Booking Databases to identify potential suspects. The IDentify Application also allows Licensee and other judicial and law enforcement agencies (each, an "Agency") to elect to share access to their Booking Databases as further described in this Addendum (the "Data Sharing Option").
2. **Participation in Data Sharing Option.** By executing this Addendum, Licensee hereby elects to participate in the Data Sharing Option, and each of Licensee and Veritone acknowledges and agrees to the supplemental terms and conditions applicable to the Data Sharing Option as set forth in this Addendum, in addition to the terms of the Agreement. All rights granted by each party under this Addendum shall continue during the Term of the Agreement, unless earlier terminated as set forth herein.
3. **Databases.**
 - (a) **Shared Databases.** Licensee will participate in the Data Sharing Option with respect to the Booking Databases indicated below (the option indicated below referred to hereinafter as the "Shared Databases") (*check/complete one option*):
 - ☒ The Booking Databases maintained in the Platform by all other Agencies participating in the Data Sharing Option; or
 - ☐ The Booking Databases maintained in the Platform by the following Agencies:
 1. N/A
 - 2.
 - 3.
 - 4.
 - (b) **Access to Licensee Databases.** Licensee hereby grants to Veritone the right to grant access to all Booking Databases that Licensee maintains in the Platform (the "Licensee Databases") to each other Agency that is participating in the Data Sharing Option and is maintaining a Shared Database in the Platform for use by each such Agency in connection with its use of the IDentify Application, and to other Agencies under limited trial licenses for evaluation purposes.
 - (c) **Access to Shared Databases.** Veritone will make available through the IDentify Application, and hereby grants to Licensee the right to access and use, the Shared Databases. Veritone's ability to make certain Shared Databases available through the Data Sharing Option may be limited by certain technical constraints, such as an Agency's database size or format or computing environment requirements.
4. **Termination of Participation.** Licensee may terminate its participation in the Data Sharing Option by providing at least 60 days prior written notice to Veritone (or such shorter period as may be required by a court having jurisdiction). In such event, (i) Veritone will restrict access to the Licensee Databases to Licensee only and will terminate access to the Licensee Databases by any other Agency, and (ii) Veritone will terminate Licensee's access to all Shared Databases, and Licensee's use of the IDentify Application thereafter will be limited to use with the Licensee Databases only. Licensee acknowledges that Licensee's right to access and use the Shared

Databases is subject at all times to the participation by other Agencies in the Data Sharing Option on a continuous basis. If any Agency terminates its participation in the Data Sharing Option, Licensee will no longer have access to the Shared Databases of such Agency or to any information generated from the Shared Databases associated with previously run searches and any resulting matches.

5. **Licensee Responsibilities.** Licensee shall be solely responsible for its use of the Shared Databases. Licensee represents and warrants that (a) it will use the Shared Databases solely in conjunction with its use of the IDentify Application in accordance with the terms of this Addendum, and (b) it will use the Shared Databases (including all data, content, materials, information and results contained in and/or generated from any of the foregoing) in compliance with all applicable laws, statutes, ordinances, rules, regulations, consent decrees, and/or requirements of any regulatory authority. Licensee shall defend, indemnify and hold harmless Veritone and its affiliates and licensors, and their respective members, officers, directors, employees, and agents, from and against any liability, losses, damages, judgments, costs and expenses, including litigation costs and reasonable attorneys' fees, arising out of or resulting from Licensee's use of the Shared Databases or Licensee's breach of any of its representations, warranties or obligations set forth in this Addendum.
6. **Authority.** The person executing this Addendum on behalf of each party represents and warrants that he or she has full authority to execute the same on behalf of such party, and that no other actions or approvals are required for such party to enter into this Addendum and perform its obligations hereunder.

IN WITNESS WHEREOF, the parties have caused this Addendum to be executed by their duly authorized representatives as of the Addendum Effective Date.

VERITONE, INC.

Signature:

Name: Jeffrey B. Coyne

Title: EVP & General Counsel

Date: June 5, 2019

LICENSEE

Signature:

Name: Chris Zapata

Title: City Manager

Date: 6/12/19

APPROVED AS TO FORM:
ANAHEIM CITY ATTORNEY'S OFFICE

BY

ATTEST:

By:

Theresa Bass
City Clerk



Agreement No. _____

City of Anaheim

Agreement Summary Sheet for Agreements Executed by the City Manager

From: <u>Police</u> (Department)		 Director's signature	
Contract Administrator: <u>Deputy Chief Julian Harvey</u> (Name)		<u>(714)765-1601</u> (Phone number)	
Name of Contractor: <u>Veritone, Inc.</u>			
Description of Services to be provided: (Please be specific) <u>Veritone's "Identify" tool allows for images of unknown suspects to be compared with a known offender database (e.g. APD mugshot booking photos) in an effort to identify potential suspect(s).</u>			
☒ Original Agreement		☐ Extension/Modification of existing	
Value of this Agreement: \$ <u>35,000.00</u> (if city will not expend funds, enter 0)			
If mod/extension, initial Value of Agreement: \$ _____			
Total Value of Agreement: \$ <u>35,000.00</u>			
Term of Agreement: <u>1 yr</u>		Renewal Options? (specify) _____	
Insurance Requirements (check all that apply): ☒ General Liability ☐ Workers Comp. ☒ Professional Liability ☐ Automobile Liability ☒ Endorsements			
List all other contracts the Department has entered into with this consultant in the last 12 months that include payment in the current year, including a description of each contract and its value and the cumulative value of all contracts with that consultant. ☒ No other contracts			
Contract Description	Authorized by CM/CC:	Value	
Current Contract Total		35,000.00	
Cumulative Total		35,000.00	

Agreement Summary Sheet for Agreements Executed by the City Manager
Page 2

The City Manager will not approve this agreement unless the Department has fully justified how the award complies with City Council Policy 4.1 and Administrative Regulation 120.

Selection Process:

Is agreement proposed pursuant to a Master Contract or Council-approved design team? ☐ Yes ☒ No **If No, answer the following questions:**

Was RFP distributed?

☐ Yes *To how many firms?* _____

☒ No *Why not? How were proposals solicited?*

APD has tested Identify for 24 mos on a trial basis, resulting in over 100 matches to potential suspects. In addition to APD's mugshots, Veritone has secured Irvine PD's as well. No other vendor has established known offender database.

How many proposals were received? 1

If only one proposal received, what steps were taken to ensure the proposed price was fair and reasonable?

Price represents significant discount based on APD's trial period during which the usability of the tool was enhanced.
Price represents fraction of the personnel costs saved using the tool; with many cases remaining unsolved without it.

Agreement Award:

Was the agreement awarded to the firm with the lowest cost?

☐ Yes

☒ No *(Explain, in detail, why not.)*

With currently the only known offender database to use for comparison purposes in the county, lower cost and / or alternative pricing was unavailable.

Attach a summary of all proposals including the name of each firm and its proposed fee for services. Order the list from lowest to highest cost, and include the ranking assigned to each firm based on the department's evaluation.

Funding Source:

☐ General Fund

☐ Other

101 - 309 - 2276 - 7820

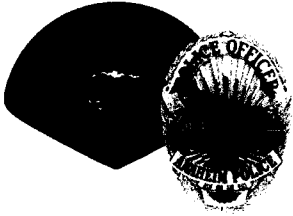
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- **Was this agreement anticipated in the approved budget?**

☒ Yes ☐ No *(Explain)*

- **Describe the funding source, and note any restrictions on the use of such funds (i.e., underground surcharge can only be used to underground utilities; grant funds authorized for specific project).**

The Department's General Fund will be the funding source - no restrictions anticipated.



ANAHEIM POLICE DEPARTMENT

Date: June 10, 2019
To: Chris Zapata, City Manager
From: Jorge Cisneros
Chief of Police
RE: Agreement with Veritone, Inc.

The Anaheim Police Department (APD) has participated in a pilot trial of a facial recognition technological tool with Veritone, Inc. (Veritone) for the past 18 months. During this pilot period, APD has used the tool, known as "Identify," to compare images of unknown individuals suspected of crimes against known offender databases consisting of booking mugshots of those arrested and booked for criminal offenses. To date, APD has made over 100 matches through this process. The majority of the images of the unknown suspects were captured as the suspects committed their crimes, and those images were subsequently included on "wanted," or "Be on the Lookout" (BOLO) fliers. One particular case involved a sexual assault which occurred in the city of Alhambra, and rather than a photograph or image of the suspect, a trained artist produced a sketch of the suspect. Identify was used to compare that sketch with the known offender databases and a possible match was made. That information was provided to the Alhambra detectives, who used it to further their investigation. Ultimately, they were able to confirm through corroborating evidence that the suspect identified by Identify was the individual responsible for the felony sexual assault.

Without this technology and in the absence of additional leads connecting a suspect to a particular crime, many of the cases which resulted in the wanted and BOLO fliers would have otherwise remained unsolved. This technology has proven invaluable in terms of not only greatly accelerating the investigative process, but Identify's ability to accurately identify potential matches cannot be duplicated via traditional means. Additionally, it is equally important to clear individuals of any involvement in crimes as it is to identify those responsible. This tool serves that purpose as well.

While there has been considerable media attention recently about the use of this technology, it is important to note APD's application of its use is very narrow - comparisons are only being attempted against individuals whose mugshots were lawfully obtained during their booking process for a criminal offense. The

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Anaheim, CA 92805

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F: (714) 765-1690

www.anaheimpd.org

Community, Teamwork, Excellence

attached Agreement is to continue our use of the platform for the described purpose for approximately one year for a sum of \$35,000. The personnel hours required to manually search and compare photographs, or to conduct surveillance and invest in traditional investigative methods would far eclipse this amount and likely not produce similar results.

Finally, as a component of the department's developing Real Time Crime Center and the City's commitment and leadership as a smart city, Identify will complement this overarching approach toward leveraging technology. Its ability to identify potential suspects in real time will serve as another layer in equipping our staff with the tools and information needed to deliver the highest level of public safety service through the reduction and prevention of crime.

Sufficient funds are available in the police department's FY 18/19, and FY 19/20 budgets for this expense, and I hereby request approval of this Agreement for the terms included. I am available should you have questions or concerns.



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

6/14/2019

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an **ADDITIONAL INSURED**, the policy(ies) must have **ADDITIONAL INSURED** provisions or be endorsed. If **SUBROGATION IS WAIVED**, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Woodruff-Sawyer & Co. 2 Park Plaza, Suite 500 Irvine CA 92614	CONTACT NAME: Katie Tiller	
	PHONE (A/C No. Ext): 949.435.7353 FAX (A/C No): 949.476.3118	
INSURED Veritone, Inc. 575 Anton Blvd., Suite 100 Newport Beach CA 92663	E-MAIL ADDRESS: ktiller@woodruffssawyer.com	
	INSURER(S) AFFORDING COVERAGE	
	INSURER A : Berkley National Insurance Company	NAIC # 38911
	INSURER B : Columbia Casualty Company	31127
	INSURER C :	
	INSURER D :	
	INSURER E :	
	INSURER F :	

COVERAGES

CERTIFICATE NUMBER: 939378230

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR ☒ HOST LIQUOR GEN'L AGGREGATE LIMIT APPLIES PER: ☒ POLICY ☐ PRO-JECT ☐ LOC OTHER:			TCP701273711	6/11/2019	6/11/2020	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 1,000,000 MED EXP (Any one person) \$ 15,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMP/OP AGG \$ 2,000,000 \$
A	AUTOMOBILE LIABILITY ☐ ANY AUTO ☐ OWNED AUTOS ONLY ☐ SCHEDULED AUTOS ☒ HIRED AUTOS ONLY ☒ NON-OWNED AUTOS ONLY			TCP701273711	6/11/2019	6/11/2020	COMBINED SINGLE LIMIT (Ea accident) \$ 1,000,000 BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$
A	☒ UMBRELLA LIAB ☒ OCCUR ☐ EXCESS LIAB ☐ CLAIMS-MADE DED RETENTION \$			TCP701273711	6/11/2019	6/11/2020	EACH OCCURRENCE \$ 10,000,000 AGGREGATE \$ 10,000,000 \$
A	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y/N ☐	N/A	TWC701281411	6/11/2019	6/11/2020	☒ PER STATUTE ☐ OTH-ER E.L. EACH ACCIDENT \$ 1,000,000 E.L. DISEASE - EA EMPLOYEE \$ 1,000,000 E.L. DISEASE - POLICY LIMIT \$ 1,000,000
B	Errors & Omissions			652016297	6/11/2019	6/11/2020	Each Claim Aggregate Deductible \$ 10,000,000 \$ 10,000,000 \$ 50,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

Evidence of Coverage

APPROVED AS TO FORM:
ANAHEIM CITY ATTORNEY'S OFFICE

BY 

CERTIFICATE HOLDER

CANCELLATION

File Copy
575 Anton Blvd., Suite 100
Costa Mesa CA 92626

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE



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